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James Glaser dba Heywood Blu Construction v. Stepanie Evins

Tuesday,

June 25, 2026

[TENTATIVE]

ORDER SUSTAINING

IN PART DEMURRER TO THE FIRST AMENDED VERIFIED CROSS-COMPLAINT

[TENTATIVE] ORDER

GRANTING IN PART CROSS-DEFENDANT JAMES GLASER DBA HEYWOOD BLU CONSTRUCTION'S
MOTION TO STRIKE (3084)

I. BACKGROUND

The complaint alleges that Plaintiff
contracted with Defendant to perform remodeling work at Defendant's residence. Defendant
owes at least \$47,555 for the work. Plaintiff alleges one cause of action for
breach of contract.

The verified, first amended
Cross-Complaint (FAXC") alleges affirmative relief for (1) breach of contract, (2)
negligence, (3) breach of the implied duty of good faith and fair dealing, (4)
rescission, (5) fraud, and (6) cancellation of mechanic's lien.

Cross-Defendant, James Glaser dba Heywood
Blu Construction, ("Cross-Defendant") demurs to the third, fourth, fifth and

sixth causes of action for failure to state a cause of action and uncertainty.

II.

LEGAL

STANDARDS

A demurrer tests the sufficiency of a complaint as a matter of law and raises only questions of law. (Schmidt v. Foundation Health (1995) 35 Cal.App.4th 1702, 1706.) In testing the complaint's sufficiency, the court must assume the truth of the properly pleaded factual allegations as well as facts that can be reasonably inferred from those expressly pleaded facts. The court may also consider matters properly subject to judicial notice. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.)

The court may not consider contentions, deductions, or conclusions of fact or law. (Moore v. Conliffe (1994) 7 Cal.4th 634, 638.) Plaintiff is required to allege facts sufficient to establish every element of each cause of action. (Rakestraw v. California Physicians Service (2000) 81 Cal.App.4th 39, 43.) Where the complaint fails to state facts sufficient to constitute a cause of action, courts should sustain the demurrer. Code Civ. Proc., § 430.10(e); (Zelig v. County of Los Angeles (2002) 27 Cal.4th 1112, 1126.)

Sufficient facts are the essential facts of the case "with reasonable precision and with particularity that is sufficiently specific to acquaint the defendant with the nature, source, and extent of his cause of action." (Gressley v. Williams (1961) 193 Cal.App.2d 636, 643-644.) Whether the Plaintiff will be able to prove the pleaded facts is irrelevant. (Stevens v. Superior Court (1986) 180 Cal.App.3d 605, 609-610.)

A demurrer may also be sustained if a complaint is "uncertain." Uncertainty exists where a complaint's factual allegations are so confusing, they do not sufficiently apprise a defendant of

the issues it is being asked to meet. (Williams

v. Beechnut Nutrition Corp. (1986) 185 Cal.App.3d 135, 139, fn. 2; Code Civ. Proc., § 430.10(f).)

A pleading is required to assert general

allegations of ultimate fact. Evidentiary facts are not required. (Quelimane Co. v. Stewart Title Guaranty

Co. (1998) 19 Cal. 4th 26, 47; Lim

v. The.TV Corp. Internat.

(2002) 99 Cal. App. 4th 684, 690.)

III.

DISCUSSION

A.

Third

cause of action for breach of the implied duty of good faith and fair dealing

Among other things, Cross-Defendant argues

this claim is duplicative of the breach of contract action and creates duties

beyond the contract by alleging statutory violations.

To prevail on a

claim for breach of the implied covenant of good faith and fair dealing, the

plaintiff must first establish “the existence of a contractual relationship

between the parties, since the covenant is an implied term in the contract.

Secondly, benefits due under the contract must have been withheld, and the

reason for withholding benefits must have been unreasonable or without proper

cause. (Love v. Fire Ins. Exchange (1990) 221 Cal.App.3d 1136, 1151.)

This

is not duplicative of the contract claim because Cross-Complainant alleges

breach of an implied term, not express term. Cross-Complainant is not imposing

additional duties. Rather Cross-Complainant asserts a statutory violation under

Business and Professions Code, section 7159, because the statute provides “benefits”

to which Cross-Complainant is entitled. The allegation is also relevant to show

Cross-Defendant's conduct was “unreasonable or without proper cause”.

That

the alleged misconduct also supports the breach of contract claim does not make

the third cause of action duplicative, as the third cause of action alleges an

additional factor to be shown: ie., unreasonable withholding of benefits.

The

claim is not uncertain because Cross-Complainant spells out in detail the acts constituting the unreasonable conduct alleged to breach the implied covenant.

B.

Fourth

cause of action for rescission

Cross-Defendant

argues that Cross-Complainant does not allege facts sufficient to support rescission under Civil Code section 1691. Cross-Defendant requires specific facts about when and how rescission was exercised. The allegations are conclusory.

Cross-Complainant

contends the claim is adequately alleged under Civil Code Section 1689.

Cross-Defendant improperly requires evidentiary facts.

To

effect a rescission, the rescinding party must give notice to the other party and restore to the other party everything of value which he has received under the contract. (Civ.

Code, § 1691.) Notably if notice has not been given or if an offer to restore benefits has not been made, "the service of a pleading in an action or proceeding that seeks relief based on rescission shall be deemed to be such notice or offer or both." (Civ.

Code, § 1691 subd (b).) Therefore, whether or not

Cross-Complainant gave formal notice is not relevant as the pleading serves as notice.

Cross-Complainant

alleges grounds for rescission under Civ Code § 1689, which include a claim that " the contract is unlawful for causes which do not appear in its terms or conditions, and the parties are not equally at fault". (Civ. Code, § 1689(b)(5).)

Cross-Complainant

argues that the contract did not comply with Bus & Prof Code § 7159 which governs home improvement contracts. (FAXC ¶ 37.) Cross-Complainant also alleges

other ways the contract was unlawful for failing to comply with statutory requirements. (FAXC ¶¶ 39-40.) Cross-Complainant also alleges that Cross-Defendants abandoned the project and removed systems and materials for which Cross-Complainant had already paid. (FAXC ¶ 40-41.)

Notwithstanding

that notice and grounds for rescission are properly alleged, the claim is deficient as it does not allege facts that are condition precedent to a claim for rescission. In *Village Northridge Homeowners Assn. v. State Farm Fire & Casualty Co.* (2010) 50 Cal.4th 913, cited by Cross-Defendant, the court noted that in order to be entitled to rescission, the plaintiff must "use reasonable diligence to comply with certain specified rules, one of which is that he [r]estore to the other party everything of value which he has received from him under the contract or offer to restore the same" (*Village* 922) In that case, the complaint was "altogether silent regarding it," and demurrer was sustained. (*Id.*)

C.

Fifth cause of action for fraud

Cross-Defendant

argues this claim is not alleged with required specificity to which Cross-Complainant disagrees.

A claim for fraud requires facts to support the following elements: (1) a misrepresentation, (2) made with knowledge of its falsity, (3) Defendant intended to defraud Plaintiff, i.e., induce Plaintiff's reliance, (4) Plaintiff justifiably relied on the misrepresentation, (5) causing damage. (*Nagy v. Nagy* (1989) 210 Cal.App.3d 1262, 1268.)

Fraud claims are subject to strict

requirements of particularity in pleading. (*Id.*) The particularity requirements necessitate pleading facts showing "how, when, where, to whom, and by what means the representations were tendered." (*Stansfield v. Starkey* (1990) 220 Cal.App.3d 59, 73.) The requirement "applies not only to the alleged misrepresentation, but also to the elements of causation and damage." (*Moncada v. West Coast Quartz Corp.* (2013) 221 Cal.App.4th 768, 776.)

Where

fraud is alleged against a corporation, the pleading standards are even greater. Plaintiff must allege "the names of the persons who made the allegedly fraudulent representations, their authority to speak, to whom they spoke, what they said or wrote, and when it was said or written." (Lazar v. Superior Court (1996) 12 Cal. 4th 631, 645.)

The

claim is adequately alleged. Cross-Complainant alleges Glaser made representations on behalf of Heywood between May 24 through February 2025, in writing or verbally. The misrepresentations were "statements that specified phases of work—including demolition, framing, and structural components—had been completed in conformity with the approved plans and that the corresponding progress payments reflected in the invoices were due and owing. Glaser also represented that he had retained a replacement architect identified as "12 Inch Studios" to prepare supplemental plans for the project, presented those purported supplemental plans to Cross-Complainant, and demanded that Cross-Complainant pay an additional invoice for those plans. (FAXC ¶ 36.)

Cross-Complainant

alleges that Glaser knowingly or with reckless disregard made these false representations specifically as described in ¶ 38 of the FAXC and more specifically "that the billed value and percentage of completion were inflated, and that the representations concerning "12 Inch Studios," the supplemental plans, and the related invoice were false and/or misleading. FAXC ¶ 38-39.)

Cross-Complainant

also alleges reliance on the written statements, invoices and plan-related representations and other documents that Cross-Complainant contends were false and caused damage (FAXC ¶ 39-41.)

Cross-Defendant

contends Cross-Complainant must allege the dates, the specific invoices, or specific phrases or amounts. Cross-Complainant is not required to allege evidentiary facts. (Careau

& Co. v. Security Pacific Business Credit, Inc. (1990) 222

Cal.App.3d 1371, 1390 ["It is both improper and insufficient for a plaintiff to simply plead the evidence by which he hopes to prove such ultimate facts."].

D.

Sixth cause of action for
cancellation of mechanic's lien

Cross-Defendant

contends this claim is uncertain as it is not a cognizable claim for relief. Cross-Defendant argues Cross-Complainant must allege what was or was not served, how service was defective, when service was required or what Cross-Complainant actually raised.

Cross-Complainant

argues that Cross-Defendant elevates form over substance. The claim seeks cancellation and expungement of the mechanics lien which is unenforceable. (FAXC ¶ 45.) The pleading alleges the specific ways that the Notice of Mechanic's Lien is not enforceable in two paragraphs. (FAXC ¶ 46, 48.)

Cross-Defendant's

authority establishes that Cross-Complainant can assert this claim within a pending action. (Civ.

Code, § 8480 ["A petition for a release order under this article may be joined with a pending action to enforce the claim of lien that is the subject of the petition. "].) Cross-Defendant contends the statute does not authorize a separate claim or cause of action for seeking relief. (Dem 11:21.) This contention elevates form over substance; Cross-Complainant joined the mechanics' lien claim with this pending action sufficient to give Cross-Defendant notice of the reasons this remedy is sought.

Cross-Defendant

does not offer any authority that Cross-Complainant has to allege evidentiary facts. (Dem 12:1-4.) Cross-Defendant does not have to guess how service was defective; Cross-Defendant can propound discovery. Demurrers for uncertainty are strictly construed, even where a complaint is in some respects uncertain, "because ambiguities can be clarified under modern discovery procedures." (Khouri v. Maly's of California, Inc. (1993) 14 Cal.App.4th 612, 616.)

IV.

CONCLUSION

Accordingly, demurrer is SUSTAINED only as to the fourth cause

of action for rescission. In all other respects, demurrer is OVERRULED. Cross-Complainant may file a second amended Cross-Complaint within 30 days to cure the defects in the claim for rescission.

[TENTATIVE ORDER] GRANTING

IN PART, CROSS-DEFENDANT JAMES GLASER DBA HEYWOOD BLU CONSTRUCTION'S MOTION TO STRIKE (3084)

I.

ARGUMENTS

Cross-Defendant

separately moves to strike the claim for punitive damages, the request for fees under Civ Code § 8800-8818, and "dossier" style allegations consisting of demand letters attached as exhibits to the FAXC that are irrelevant and improper.

Cross-Complainant

alleges the fraud claim is properly alleged and supports the claim for punitive damages. The pleading seeks attorney's fees based on Civil Code §§ 8422, 8424, and 8488, which is the statutory mechanic's lien framework. The exhibits are relevant to pre-litigation notice for rescission, and other alleged claims. They are not being submitted as evidence.

II.

LEGAL STANDARDS

The court may, upon motion or at any time in its discretion and upon terms it deems proper: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of the pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the Court. Code Civ. Proc., § 436 subd (a)-(b). Grounds for the motion to strike are limited to matters that appear on the face of the pleading or on any matter which the court shall or may take judicial notice. (Code Civ. Proc., § 437.)

III.

DISCUSSION

A.

Punitive

damages

To

recovery exemplary damages, defendant must allege predicate acts that constitute oppression, fraud, or malice. (Civ. Code, § 3294 subd. (a).) Such acts must be intended to cause injury or must constitute “malicious” or “oppressive” conduct as defined by statute.

“Malice” is defined as “conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (Civ. Code, § 3294 subd. (c)(1); College

Hospital Inc. v. Superior Court (1994)

8 Cal.4th 704, 725 [“malice

involves awareness of dangerous consequences and a willful and deliberate failure to avoid them”].)

“Oppression”

is defined as “despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights.”].) In other words, absent an intent to injure the plaintiff, the conduct must be “despicable” defined as “base, vile, or contemptible.” (College

Hospital Inc. v. Superior Court (1994) 8

Cal.4th 704, 724.)

The

fraud claim is adequately alleged with specificity and serves as a predicate act for recovery of punitive damages.

B.

Attorney's

fees

Cross-Complainant prays for recovery of

attorney's fees based on Civil Code § 8800-8818. Cross-Complainant can recover attorney's

fees pursuant to Civil Code § 8488 for release of the mechanic's lien. (Civ. Code, § 8488.) That claim is adequately alleged.

C.

Exhibits to

the FAXC

The exhibits are expressly referenced in

the pleading and attached to support the background facts alleged, i.e., plans and permits. Their inclusion is not irrelevant as the factual allegations are detailed and numerous.

However, Cross-Complainant refers to demand letters submitted in Ex. 110. They are referenced in the pleading following damages claimed. (FAXC p. 57-28.) While Cross-Complainant is correct that these documents are not being introduced as evidence, they are irrelevant to any claim asserted.

The court strikes the following:

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Exhibit 10

April 30, 2025, offer of settlement and exhibits 1-7 thereto

.

June 11, 2025,

email of settlement

Additionally, the April 30 letter includes

Glaser's date of birth and asserts existence of judgment liens and bankruptcy.

(Ex. 10, fn 2.) This is not relevant to any claim asserted by

Cross-Complainant.

IV.

CONCLUSION

Therefore, Cross-Defendant's motion to

strike is GRANTED in part. The court strikes the settlement letters referenced

above from the verified first amended cross complaint. In all other respects,

the motion is DENIED.